

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SOTHEARITH CHANTY,

Petitioner

VS.

SIENNA ERIKA REYES DE MESA,

Respondent

) Case Number: FMS-25-387587

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History:

- 1) Sothearith Chanty (Father) and Sienna Erika Reyes De Mesa (Mother) are the parents of Sebastian Singh De Mesa Chanty, age 5 (DOB 8/21/2019).
- 2) Father filed an RFO requesting joint physical custody and joint legal custody on January 30, 2026. Father alleged that Mother had denied him access to the child since June 2025. Mother opposed the RFO on April 1, 2026. She requested sole physical and legal custody, alleging that Father had a history of alcohol abuse. and had frequently missed scheduled visitation with Sebastian.
- 3) The parties were unable to agree in mediation on the terms of a parenting plan.
- 4) A hearing on Father's RFO was held before the Honorable Donna Petre on April 28, 2026. Father appeared with his attorney, Jennie Vaughn. Mother appeared with her attorney, Jasmine Nicklberry. Judge Petre ordered that the parents would share joint physical and joint legal custody of Sebastian. Father's parenting time was established as every Saturday from 10:00 a.m. to 6:00 p.m., and every Wednesday afternoon until Thursday morning.

- 1 5) Father's request for the right to travel internationally with Sebastian for two weeks annually was
2 reserved. This issue was set for hearing for June 16, 2026. Judge Petre authorized each party to
3 file further declarations no later than June 6, 2026 on the issue of Father's request for an order
4 allowing him to travel internationally with the child.
- 5 6) Father filed a supplemental declaration on June 5, 2026. Father stated he immigrated from
6 Cambodia to the United States in 2007 and became a U.S. citizen in 2011. Father lives with and
7 cares for his elderly parents. His parents also immigrated from Cambodia; they became U.S.
8 citizens in 2026. Father has worked as a pediatric medical assistant for the San Francisco Dept. of
9 Public Health, Children's Health Center, for many years. He is working towards obtaining a
10 nursing degree. Father states he is committed to living in the United States, where he can earn a
11 good living and provide good health care for his parents.
- 12 7) On May 27, 2026, during Sebastian's first overnight visit with Father, Sebastian told Father that
13 he was worried that Father would take him to Cambodia and prevent him from seeing Mother
14 again. Father denies intent to interfere with Mother's parenting time. He points out that Mother
15 took Sebastian to visit her country of origin, the Philippines, during the summer of 2025. Father
16 wants Sebastian to be able to visit with his extended paternal family during Father's planned trip
17 to Cambodia from December 20, 2026 through January 3, 2027.
- 18 8) On June 9, 2026, Mother filed an *ex parte* request to continue the June 16, 2026 hearing date to
19 August 25, 2026 or thereafter. The court denied Mother's request for continuance.
- 20 9) Mother did not file a supplemental declaration on the issue of international travel.

21 **B. Findings and Orders**

- 22 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
23 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
24 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
25 child is the United States.
- 26 2) The court's May 1, 2026 order requiring a party who wishes to travel internationally with the
27 child to obtain the written consent of the other parent or a court order remains in full force and
28 effect.
- 29

1 3) The court finds that it is in Sebastian's best interest to (a) develop a positive relationship with
2 Father and with members of his extended paternal family; and (b) learn more about Father's
3 cultural history. Traveling with Father to Cambodia for a gathering of Father's relatives in
4 December 2026 will further these goals.

5 4) Father is authorized to travel with Sebastian to Cambodia between December 20, 2026 and
6 January 3, 2027 on the following conditions:

7 a. Mother shall provide Father with Sebastian's passport on or before December 19, 2026.

8 Father shall return Sebastian's passport to Mother at the conclusion of the trip.

9 b. Father's request to modify the May 1, 2026 court order to require that Sebastian's
10 passport be removed from Mother's possession and lodged with the court is denied
11 without prejudice to renew.

12 c. Father shall provide Mother with a travel itinerary within 48 hours of finalizing travel
13 arrangements for the trip to Cambodia. On or before December 10, 2026, Father shall
14 provide Mother with the address of any location in Cambodia where Sebastian will be
15 spending 1 or more overnights. If the travel or lodging arrangements change during the
16 trip, Father shall notify Mother of the change[s] at the earliest opportunity.

17 d. Father shall allow Sebastian to speak by telephone or videochat with Mother at least once
18 every 48 hours while Sebastian is in Cambodia.

19 e. Should an unforeseen emergency affecting Sebastian arise during the trip to Cambodia
20 (including, but not limited to illness, accident, or natural disaster), Father must notify
21 Mother at the earliest possible opportunity.

22 f. Mother shall refrain from speaking negatively about Father when Sebastian is present.
23 Mother shall not speak negatively to Sebastian about the trip to Cambodia. Mother shall
24 not state or suggest in Sebastian's presence that Father intends to remove Sebastian from
25 Mother's care or prevent Sebastian from spending time with Mother in the future.

26 5) Father's attorney shall prepare the Findings and Order After Hearing.

27 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
28 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
29 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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